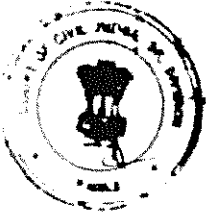


SC 552/13
Dw/C-7/44
70/4/22

IN THE COURT OF CIVIL JUDGE SENIOR DIVISION
AT PANAJI - GOA



Special Civil Suit No. 52/2013/A

Comunidade of Bambolim

... Plaintiff

Versus

Pascoal Trindade & Ors.

... Defendants

Name: Vikram Shah
Father's Name: Chinubhai Shah
Age: 72 years
Resident of: 28, Capri Building, 9, Manav Mandir
Road, Near Teen Batti, Walkeshwar,
Mumbai Maharashtra - 400 006.

I, Vikram Chinubhai Shah, son of Chinubhai Shah, 72 years,
resident of 28, Capri Building, 9, Manav Mandir Road, Near Teen
Batti, Walkeshwar, Mumbai Maharashtra - 400 006, the
Authorised Representative of Defendant No. 20 in the present suit
do hereby on solemn state as under:-

- 
1. I say that I am a law abiding citizen and a respectable businessman engaged in the business of construction and real estate development.
 2. I say that I am conversant with the facts surrounding the present case in my personally capacity by virtue of being the business partner of the deceased Defendant No. 1, Pascoal Irineu Trindade as well as based on the records maintained by the Defendant No. 20.
 3. I say that the Defendant No. 1 (since deceased now his legal heirs) 2 and 20 herein, are the lawful owner in actual and physical possession and enjoyment of the following properties:

The property known as OHOR or OROS and "BAIEM FONDLEM" And "SAVELI GALT", bearing survey Nos.93/2, 93/3 And 93/4 Of Village Bambolim within the limits of Village Panchayat, Curca, Bambolim & Talaulim, Taluka of Tiswadi, Registration Sub-District of North Goa District, Admeasuring 35,600 Square Meters, 26,825 Square Meters And 35,075 Square Meters, respectively, totally admeasuring





97,500 Square Meters and which property is bounded as follows:-

*Property surveyed under Survey No. 93/2, admeasuring
an area of 35,600 Square Meters*

And bounded as under:-

On the East : By plot surveyed under No.93/1
On the West : By plots surveyed under Nos.93, 106,
107/1, 2, 3, 5 & 6.
On the North : By Bambolim village road & plot
surveyed
under No.107/7-11
On the South : By plot surveyed under No.103

*Property surveyed under Survey No. 93/3, admeasuring
an area of 26,825 Square Meters*

And bounded as under:-

On the East : By plot surveyed under No.93/1
On the West : By the plot of GMC surveyed under
Nos.102/3 and 104
On the North : By plot surveyed under No.103
On the South : By plot surveyed under No.94



*Property surveyed under Survey No. 93/4, admeasuring
an area of 35,075 Square Meters*

And bounded as under:-

On the East : By plot surveyed under No.93/1
On the West : By plot Nos.95, 96 & 97
On the North : By plot surveyed under No.94
On the South : By village boundary of Siridao

*All of the aforementioned properties are hereinafter referred
to as the said properties for the sake of brevity*

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4. I say that the based on the records maintained by the Directorate of Survey and Land Records, Government of Goa said properties right from prior to the commencement of the survey exercise, the said properties were private properties originally belonging to Maria Conceicao Rodrigues of Santa Cruz.
5. I say that this position is clearly established in terms of Form III issued by the Department of Survey & Land Records in respect of the said properties, which document preceded the Form I & XIV of Record of Rights and prior to the promulgation of Land Survey in the concerned Village.
6. I say that the said Maria Conceicao Rodrigues was married to Gregorio Germano Mergulhao of Santa Cruz and out of the wedlock Maria Conceicao Rodrigues had two sons, namely, Francisco Aleixo das Dores Mergulhao and Emanuel Joveaniano Paixao Mergulhao.
7. I say that the said Maria Conceicao Rodrigues who was the widow of Gregorio Germano Mergulhao expired on 05.10.1901.

[Handwritten signature]



- 
8. I say that Francisco Aleixo das Dores Mergulhao expired on 12.07.1906 as bachelor without any will or last testament,
9. I say that Emanuel Joveaniano Paixao Mergulhao expired on 11.11.1929. The said Emanuel Joveaniano Paixao Mergulhao was married to Maria Gertrudes does Pereguinos Viegas.
10. I say that out of the wedlock, Emanuel Joveaniano Paixao Mergulhao and Maria Gertrudes does Pereguinos Viegas had only one male issue, their son, namely Maximo Mergulhao.
11. I say that Maximo Mergulhao is the late husband of Mrs. Dionisia Dias L Mergulhao alias Dionisio Dias E Mergulhao, the erstwhile Defendant No. 3 herein (who has since been deleted by the Plaintiff from the present proceedings).
12. I say that Maximo Mergulhao alias Maximiano Mergulhao expired on 26.03.1998 bequeathing by Will dated 14.05.1990 executed before the Civil Registrar Cum Sub-Registrar and Notary Public Ex-officio the disposable quota of all his properties in favour of his only son Mr. Americo Mergulhao which is seen from the Deed of Succession dated 04.06.1998. Thus Mrs. Dionisia Dias E Mergulhao alias Dionisio Dias F
- 
- 



Mergulhao i.e the interested party as his moiety holder or half sharer and his heir his only son Mr. Americo Mergulhao married to Mrs. Celia Menezes. Thus the only and universal heir and successor.

13.I say that vide Deed of Gratuitous Relinquishment of Illiquid Rights dated 13.05.1998 the said Americo Mergulhao son of Maximo Mergulhao and his wife Celia Menezes relinquished their undefined, illiquid and undivided right, title and interest which they were entitled to upon the death of their father and father-in-law Mr. Maximo Mergulhao, thus making their mother and mother-in-law Mrs. Dionisia Dias E Mergulhao alias Dionisio Dias E Mergulhao, the erstwhile Defendant No. 3 herein, the sole owner of the said properties which are mentioned above namely Ohor or Oros and "Bailem Fondiem" and "Bailem Londiem" and "Saveli Gali".

14.I say that vide Three (3) Deeds of Sale the said properties were purchased by the Defendant No. 1 for valuable consideration from that the said Dionisia Dias E Mergulhao alias Dionisio Dias E Mergulhao, with the intervention of the erstwhile Defendant No. 4 and 5 as confirming party therein.

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15. I say that Deed of Sale dated 25th April 2006 is registered in the office of the Sub-Registrar of Ilhas Goa under No. 1238 at pages 369 to 387, Book I, Volume 1634 dated 03.05.2006.
16. I say that Deed of Sale dated 25th April 2006 is registered in the office of the Sub-Registrar of Ilhas Goa under No. 1239 at pages 388 to 408, Book I, Volume 1634 dated 03.05.2006.
17. I say that Deed of Sale dated 25th April 2006 is registered in the office of the Sub-Registrar of Ilhas Goa under No. 1240 at pages 409 to 427, Book I, Volume 1634 dated 03.05.2006.
18. I say that the Defendant Nos. 1 and 2 have since been in continuous and peaceful possession and enjoyment of the said properties and thereafter in so far as the suit property bearing Survey No. 932 is concerned, the Defendant No. 20 continues to be in possession and enjoyment thereof.
19. I say that subsequent to purchase of the said properties vide aforementioned Deeds of Sale, whilst the deceased Defendant No. 1 and myself were in the process of applying for mutation of the land records, it was realized by us that though the

A handwritten signature, possibly 'D. S.', written in ink.



Defendant No. 1 had acquired exclusive ownership of the said properties, certain names were erroneously reflecting in the Tenant's Column of the Form I & XIV of Record of Rights. I say that though the names were appearing in the Tenants Column the same had at no point in time been declared as tenant/s as required under the Goa, Daman & Diu Agricultural Tenancy Act, 1964, and their names were as such erroneously displayed therein. I say that I therefore suggested to the Defendant No. 1 to seek legal advice in this direction.

20. I say that after seeking legal advice the Defendant No. 1 instituted a civil suit against the said persons namely Pundalik Konkolkar and 13 others viz., Regular Civil Suit No. 6/2007/C before the Court of Civil Judge, Junior Division at Panaji seeking declaration that he is the exclusive owner in possession and enjoyment of the said properties bearing Survey Nos. 93/2, 93/3 and 93/4 totally admeasuring about 97,500 Sq.Mtrs and for deleting erroneous entries in the tenants column in Survey Record of the said property or and for directing the Dy. Collector or any other authority necessary under the Land Revenue Code to delete the said entries.



21. I say that the said suit was decreed vide judgement and order dated 25.01.2007 *inter alia* holding the Defendant No. 1 as the owner of the said properties bearing Survey Nos. 93/2, 93/3 and 93/4. Admeasuring about 97500 Sq. Mtrs.



22. I say that the said persons whose names were wrongly recorded in the Column of Tenant fairly admitted that their names were erroneously recorded in Tenants column of Survey Record and they declared that they have no right of whatsoever to the suit properties and that they have no objection for deletion of said erroneous entries. I say that in terms of the decretal order, the Ld. Judge was also pleased to restrain the said persons and their families from interfering in any manner in the suit property.

23. I say that pursuant to the said decree said persons and legal heirs, whose names were wrongly/ erroneously recorded in the survey record of Suit Properties bearing Survey Nos. 93/2, 93/3, 93/4 approached the Dy. Collector and filed an application u/s 103 of Land Revenue Code, 1968 admitting that the Defendant No. 1 is the owner of the said properties bearing Survey Nos. 93/2, 93/3 and 93/4 and that their names had been



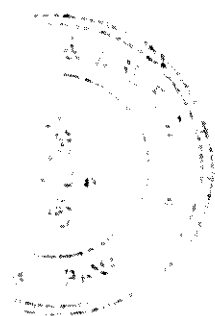
wrongly recorded in the Column of Tenant and further requested to delete the same.



24.I say that the said application was registered as Case No. LRC/COR/8/2007 and it was only after conducting a detailed enquiry that the Dy. Collector & S.D.O. by judgment and order dated 03.04.2007 allowed the said application preferred by the persons whose names were appearing in the column of Tenant and accordingly directed the Mamlatdar of Tiswadi to delete said names from Survey Records which were entered wrongly.

25.I say that the Mamlatdar of Tiswadi accordingly carried out deletion of the said erroneous entries from the "Tenant's column" of Properties bearing Survey Nos. 93/2, 93/3 and 93/4 in accordance with the provisions of law.

26.I say that I am aware based on records maintained by the Defendant No. 1 as well as 20, that the Plaintiff i.e. Comunidade of Bambolim had filed a suit being, Special Civil Suit No. 222/1994/B before the Civil Judge Senior Division at Panaji against Maximo Mergulhao since deceased through L.R.S. Mrs. Deonocio Dias e Mergulhao, the



Defendant No. 3 herein, for declaration that the another property which was surveyed under No. 89/3 is part of the property named by "Oros" belonging to Comunidade. Similarly, the Plaintiff has instituted another suit being Civil Suit No. 66/2009 before the Hon'ble District Court in respect of these very suit properties seeking identical reliefs.



27. I say that vide Consent Decree dated 21.11.1998 the said suit was compromised and decreed. I say that upon perusal of the records and proceedings of the said suit it would transpire that the said suit was being conducted by one Jeronimo Monteiro alias Jerry, the Special Attorney of the Comunidade, who continued to be a member and constituent of the Comunidade until his demise, and Advocate Shri. G. D. Kirtani on behalf of Comunidade.

28. I say that in compromise of the said suit, the Plaintiff agreed to take 45 plots in Survey No. 93/2, 93/3 and 93/4.

29. I say that the Plaintiffs did not have any claim in respect of the suit properties herein i.e. Survey Nos. 93/2, 93/3, 93/4 in the Special Civil Suit No. 222/1994/B. However, the Plaintiff



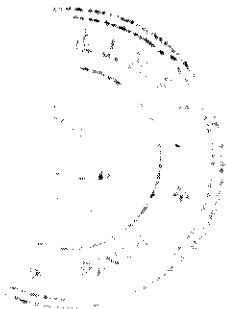


agreed to take 45 plots in Survey No. 93/2, 93/3 and 93/4 in order to compromise the said suit. I say that if it were to be the case of the Plaintiff that the suit properties belonged to the Plaintiff, then one fails to understand as to why the Plaintiff Commuidade would settle to take 45 plots in their own property. I say that this conduct alone goes to show that there is no ownership or any semblance of title in favour of the Commuidade in respect of the Survey No. 93/2, 93/3 and 93/4.

30. I say that said Consent Terms and the Consent Decree were registered before Sub Registrar of Tiswadi at Panaji.

31. I say that the name of the Defendant No. 1 is reflected in the Form I & XIV of Record of Rights of all three suit properties viz. Survey Nos 93/2, 93/3 and 93/4 of Village Bambolim.

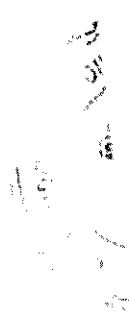
32. I say that the Consent Terms dated 19.11.1998, Consent Decree dated 21.11.1998, Deeds of Sale dated 25.04.2006, Forms I & XIV have all been in the public domain.



33. I say that on 29.09.2008 the then President of the Plaintiff, Carmon U. C. de Souza alongwith other office bearers and components of the Comunidade of Bambolim addressed a handwritten letter to the Defendant No. 1 asking for a per square meter rate to be paid to them in return for the 45 plots allotted to them under the Consent Terms. I say that the said Letter bears the signatures of ten (10) persons including that of the Attorney Shri. Luis Abreu who has signed the plaint and deposed as a witness in the present suit.

34. I say that the proposal of the then President of the Plaintiff, Carmon U. C. de Souza alongwith other office bearers and components of the Comunidade of Bambolim addressed in terms of the aforesaid Letter dated 29.09.2008 was discussed by the Defendant No. 1 with me and we had decided that the same was not feasible in view of the exorbitant rate demanded by the said office bearers and components of the Comunidade of Bambolim.

35. I say that even as of 29.09.2008, the Consent Terms dated 19.11.1998 and the Consent Decree dated 21.11.1998 was very much known to the then President of the Plaintiff, Carmon U.



C. de Souza alongwith other office bearers and components of the Comunidade of Bambolim including the Attorney Shri. Luis Abreu who has signed the plaint and deposed as a witness in the present suit.

36. I say that the then President of the Comunidade of Bambolim, Mr. Marvin Gonsalves, in his personal capacity had filed a Writ Petition viz., Writ Petition No. 102 of 2009 before the Hon'ble High Court of Bombay at Goa seeking inquiry in respect of the properties in question. The Hon'ble High Court of Bombay at Goa, based on statement made by the Ld. Advocate General, passed an order directing the Deputy Collector and S.D.O., Panaji to hold a detail inquiry looking into the allegations of the Comunidade and its constituents.

37. I say that submitted that said inquiry was registered as Case No. ILL/CNV/19-2009-881 by the Deputy Collector. I say that although the inquiry was initiated by the Dy. Collector on the basis of complaints made by the Comunidade of Bambolim, the said Comunidade chose to array themselves as party respondents in the said inquiry instead of being in its forefront, or becoming State witnesses which itself goes to show that the constituents of the Comunidade of Bambolim were litigating

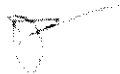


with ulterior motive as they on their own did not have any evidence to show that the Comunidade of Bambolim had anything to do with the suit properties.

38. I say that these Plaintiff participated in the inquiry and cross examined the Mamlatdar as well as other state witnesses and thus prolonging the inquiry for period of more than 2 years which was otherwise directed to be finished within 3 months in terms of the Order dated 21.06.2010 of the Hon'ble High Court.

39. I say that the Comunidade inspite of having ample opportunity chose not to examine themselves on oath before the Dy. Collector and instead preferred to examine its ex-office bearers. I say that the said ex-office bearers of the Comunidade in cross examination has clearly admitted that the boundaries of the properties in question owned by the undersigned are different than those claimed by the Comunidade of Bambolim.

40. I say that the Deputy Collector gave a finding in our favour and rejected all the contentions and allegations of the Plaintiff and its constituents.



41. I say that the accordingly Writ Petition No. 102/2009 was disposed off.

42. I say that the constituents of the Plaintiff once again approached the Hon'ble High Court of Bombay at Goa vide Writ Petition Nos. 506 of 2009, 557 of 2009, 577 of 2009 and 657 of 2011. I say that the contentions raised in the aforementioned writ petitions were identical to those raised in the present suit proceedings. I say that all the contentions were rejected by the Hon'ble High Court while passing a detailed Order dated 29.03.2012.

43. I say that the constituents of the Plaintiff assailed the Order dated 29.03.2012 passed by the Hon'ble High Court before the Hon'ble Supreme Court of India vide Special Leave Petition No. 19595-19598/2012.

44. I say that the Hon'ble Supreme Court of India vide Order dated 24.08.2012 rejected the contentions of the constituents of the Plaintiff.



45.I say that the Defendant No. 1 has been granted conversion sanads, vide Conversion Sanads bearing Nos. RB/CNV/TIS/133/2008 dated 16.12.2011 in respect of property surveyed under Survey No. 93/2, Conversion Sanad No. RB/CNV/TIS/135/2008 dated 16.12.2011 in respect of property surveyed under Survey No. 93/3, and Conversion Sanad No. RB/CNV/TIS/03/2008 dated 16.12.2011 in respect of property surveyed under Survey No. 93/4.



46.I say that Technical Clearance Orders have been issued by the Town & Country Planning Department Panaji Reference No. TIS/6124/BAM/TCP/12/384 Dated 03.04.2012 in respect of property bearing survey No. 93/2 of Village Bambolim, Taluka Tiswadi, Goa; Reference No. TIS/7554/BAM/TCP/13/377 Dated 27.02.2013 in respect of property bearing survey No. 93/3 of Village Bambolim, Taluka Tiswadi, Goa; and Reference No. TIS/6087/BAM/TCP/12/1045 Dated 27.08.2012 in respect of property bearing survey no.93/4 of Village Bambolim, Taluka Tiswadi, Goa in favour of Defendant No. 1.



47.I say that NOCs from Health Department Ref No. UHC/DHS/NOC/12-13/326 dated 27.04.2012 in respect of property surveyed under Survey No. 93/2; Ref No. UHCP/DHS/NOC/12-13/3557 dated 13.3.2013 in respect of property surveyed under Survey No. 93/3; and Ref No. UHCP/DHS/NOC/12-13/1995 Dated 21.09.2012 in respect of property surveyed under Survey No. 93/4, have been duly obtained by the Defendant No. 1.

48.I say that Environmental Sanction has been accorded vide order bearing Ref No. 3-181-2010/STE-DIR/105 Dated 22.03.2013 in respect of property surveyed under Survey No. 93/2, and similarly vide order bearing Ref No: 3-181-2010/STE-DIR/104 Dated 22.03.2013 in respect of property surveyed under Survey No. 93/4 at the request of the Defendant No. 1.

49.I say that the Defendant No. 1 has obtained Construction License Ref No. VP/CBE.2013-14/CONST/186 Dated 02.05.2013 in respect of property bearing survey no.93/2 of Village Bambolim, Taluka Tiswadi, Goa; vide Ref No.VP-CB1,2013-14/CONST-88 dated 16.04.2013 in respect of property surveyed under Survey No. 93/3 of Village



Bambolim, Taluka Tiswadi , Goa, and vide Ref No.VP/CBT/2012-13/CONST/2041 Dated 30.03.2013 in respect of property surveyed under Survey No. 93/4 of Village Bambolim, Taluka Tiswadi , Goa, by the Village Panchayat of Curca, Bambolim and Talaulim thus entitling the undertaking of construction activity in the said properties.



50.I say that the sole intent of the Plaintiff has been to mete out continuous harassment in order to coerce into yielding to the demands of the Plaintiff. I say that the entire gambit of the Plaintiffs is to extort money by leveling false and baseless claims in respect of the said properties.

51.I say that vide Deed of Sale dated 16.03.2016, the Defendant No. 20, M's. Loonkar Developers has purchased the property bearing Survey No. 93/2 admeasuring 35.600 sq. mts for a valuable consideration.

52.I say that said properties have always been private properties.

53.I say that the so called Tombasao Records are the private records of the Plaintiff, created and fabricated.





54.I say that the Plantas are not contemporaneous to the Survey Plan available with the Survey Department, the same are not updated and as such cannot be relied upon.

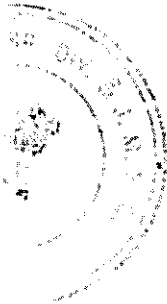
55.I say that the Land Acquisition carried out in terms of the Notification No. 1 QN-10-42 dated 18.08.1965 does not pertain to the suit properties.

56.I say that the identification of the properties claimed by the Plaintiffs in terms of the suit plaint is vague, elusive and ambiguous.

57.I say that Survey No. 32, 32/1, 43/2, 44, 45, 46/1 or 89/3 do not correspond to Survey Nos. 93/2, 93/3 or 93/4.

58.I say that Survey No. 89/3 does not correspond to Survey Nos. 93/2, 93/3 or 93/4.

59.I say that the Plaintiff had knowledge of the said Consent Decree all along.



60.I say that the Correspondence Certificate relied upon by the Plaintiffs is erroneous and itself bears the remark at page 2 of the said certificate that :- *"the same is determined by way of superimposing new survey map on Planta No. 15036 and 15037 - do not involve any field work - As such verification of corresponding new survey No. may differ on ground"*.



61 I say that the said document is therefore inconclusive, and as such does not in any manner further the allegations of the Plaintiff.

62.I say that the Plaintiffs have failed to establish any title to the suit properties and as such the present suit deserves to be dismissed.

63.I say that the present suit has been instituted by the Plaintiffs after having failed to secure any relief from various judicial fora including the Hon'ble High Court and the Hon'ble Supreme Court. The present suit is barred by limitation and deserves to be dismissed.

Solemnly affirmed on this 20th day of April, 2022 at Panaji,
Tiswadi, Goa.

(Deponent)

Identified by me:

W. Kanak

(Adv. For the Defendant Nos. 20)



Court of the Civil Judge, S. Panaji
Solemnly affirmed before me by Shri
Smt. W. Kanak
who identified before me by Shri
W. Kanak whom
personally know
Panaji, 20/4/2022

Superintendent/Clerk of the Court

Checked with original

W. Kanak